

2. S-PR-0011812 In Re the Conservatorship of Taylor, Susan C.

Appearance is required for continued hearing on 1st conservatorship account.

The 1st conservatorship account is substantially overdue and was 18 months out of date when filed. The court has been informed by the court investigator that conservatee died in December 2024. Conservator's final account is also substantially overdue. Conservator failed to timely report conservatee's death to the court.

Missing inventories and appraisals of all conservatorship assets (the only inventory filed applies to approximately 7 hundredths of one percent of conservatorship property, a de minimus amount). Conservator offers no legal basis for failure to inventory conservatorship assets, including securities (which require referee appraisal). All assets received by conservator must be inventoried and appraised as required by law.

Further allegations are needed concerning the confused state of title to alleged conservatorship assets. Conservator offers no explanation for why numerous accounts are title in the name of third parties or are titled jointly with others. Conservator may not commingle assets of the conservatorship with assets of any other person. All assets must be adequately marshaled, which includes updating or correcting account title ownership, and / or removing joint owners.

Conservator appears to admit making a \$500 gift to herself, offering as the only explanation that the gift was "at the direction of the Conservat[ee] to the conservat[or] for the time and effort the conservat[or] was rendering to her mother, the conservat[ee]." This does not provide legal support for the improper gift. Conservator may not make gifts of conservatorship property, no matter whether conservatee directs her to do so, and in particular may not take gifts of property for herself.

Missing any explanation for the "unknown disbursements" identified in the account.

The account admits improper payment of \$1,000 in attorney fees to counsel for conservator. Whether conservator issued the payment inadvertently, counsel's acceptance of the payment itself contravenes the restrictions of Prob.C. § 2647. Neither conservator nor counsel offer a sufficient explanation for the failure to remedy the error immediately upon its discovery. Additionally, fees cannot be approved until "after the filing of the inventory and appraisal." Prob.C. § 2640(a). As conservator has effectively failed to inventory any assets, any request to approve conservator fees is premature. Missing required counsel declaration in conformity with C.R.C. 7.751 & 7.702 to support any claimed fees.

Missing sufficient bond report. Conservator fails to show that bond is adequate as alleged. Indeed, based solely on property on hand at the end of the account (without consideration of annual income), C.R.C. 7.207 requires bond of more than \$585,000. Bond is not adequate. Corrected bond report and request to increase bond is needed.

Note: because the account was substantially stale when filed, the court cannot determine whether bond should be based on any information reported in the account.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are offered to assist the court and the parties to prepare for the hearing. Local Rule 80.2.1

3. S-PR-0012082 In Re the Conservatorship of Lewis, Judith A

Appearance is required for continued hearing on first conservatorship account.

Missing service of notice of hearing and of account to conservatee. Even if conservatee were still represented by counsel (she presently is not represented by court-appointed counsel), direct notice and service are required. Prob.C. § 1214; C.R.C. 7.51.

Inventory and appraisal filed November 5, 2025, includes erroneous appraisal of promissory note by conservator. Prob.C. §§ 2610(c), 8901 & 8902(b). Additionally, conservator has provided no information about the note (its origin, terms, repayment, etc.). Referee appraisal and additional information are needed.

Clarification is needed: the account identifies payments described as "interest" from "SLS Investing Cash Account #111," which may be related to the SLS Investing LLC promissory note included in the inventory. However, no LLC membership interest or financial account by that name has been inventoried to the estate or is identified in any property-on-hand schedule. The nature and origin of the account and associated receipts are needed.

Clarification is needed: account includes numerous "mobile deposits" in varying amounts without explanation. The nature and origin of said deposits are needed.

Missing financial account and care home statements. Prob.C. § 2620(c).

4. S-PR-0012759 In Re the Conservatorship of Fornasero, Joseph M.

Appearance is required for continued hearing on 1st conservatorship account.

Clarification is needed: the account shows many insufficiently unexplained payments to Lynette Kleinfall, including more than \$75,000 for various home expenses (not itemized) while conservatee resides in a care home.

Clarification is needed: payments to Service Finance Company LLC are not explained.

Clarification is needed: account shows reductions in the carry value of the conservatorship interest in J&B Holdings LLC totaling more than \$1.3M with no explanation as to how or why the carry value was modified.